

ISACA response re:
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Introduction

About ISACA:

ISACA is an independent nonprofit association focused on the meeting the knowledge, skilling, and related needs of technical professionals throughout the world. ISACA is actively engaged in the creation, development, adoption, and use of globally accepted, industry-leading knowledge and practices for the effective and safe organizational and personal use of technology. ISACA's long and distinguished history of meeting the needs of technical professionals in the United States began more than fifty years ago, when it was founded in California. Today, from its global headquarters in Illinois, ISACA meets the needs of member and certification holder communities throughout the United States that comprise a central—and growing—constituency within ISACA's global community of nearly 180,000 members worldwide.

ISACA has a long history of supporting national initiatives focused on information and cyber security, privacy, governance, risk management, and auditing, and stands ready to assist the US government in any capacity it can as the United States continues to chart a forward-focused path across rapidly evolving cybersecurity, workforce, and technology landscapes.

Response to the Office of Science and Technology Policy's (OSTP's) Networking and Information Technology Research and Development (NITRD) National Coordination Office's (NCO's) Request for Information on the Development of an AI Action Plan ("Plan")

ISACA is appreciative of the NITRD NCO's request for input regarding the development of an AI Action Plan for the current Administration, and recognizes the critical need to balance sound policy with actions that support rather than stifle innovation. Our organization believes that, by focusing on a few key areas, this goal can be accomplished in a comprehensive and impactful manner.

For the Action Plan to have measurable and lasting impact, ISACA feels that the Administration would greatly benefit by focusing on AI policy actions addressing:

- 1) education and workforce development,
- 2) regulation and governance, including technical and safety standards,
- 3) and security, privacy, and impartiality throughout the lifecycle of AI system development and deployment.

ISACA believes that efforts such as these are foundational in nature. It is ISACA's considered opinion that improvements in these three areas have the potential to create force multiplier effects across

industries and workforces, improving innovation and competition, national security and defense, international collaborations, and America's overall economic landscape. ISACA has several suggestions for potential policy initiatives to support the Administration's AI Action Plan.

Education and Workforce Development

It is ISACA's deeply-held belief that it is critical to the US public and private sectors that a trained workforce is in place that is capable of meeting the challenges AI presents today and—going forward—has the capacity to address challenges that will arrive as AI's maturation continues.

"Sprints" have been in vogue for quite some time, in both the private and public sectors. While these can be of value, ISACA believes that AI requires more of a "Marathon" approach. Focusing on growing the workforce through a rush to create apprenticeship opportunities, to make commitments for credentialing a certain number of workers—ISACA believes these efforts help to address areas like AI; similar efforts, in fact have already benefited cybersecurity. However, ISACA also believes that such efforts address the symptoms of problems, rather than the core elements of the problems themselves.

No matter how well-intentioned or well-executed a "sprint" is, however, the fact remains that it is a short-term solution to a problem that will be around for the long term. AI, for all the advances we have seen thus far, is still a maturing technology; the Action Plan must not merely be built for the next few years, but remain effective far into the future.

ISACA believes that a long-term, sustainable and sustained focus on developing educational pipelines that begin in primary and secondary education, progress through community colleges and universities, and are strong, yet flexible enough to address evolving workforce needs is of paramount importance.

ISACA's *State of Cybersecurity* research has shown, in recent years, a distinct need for both technical and non-technical skills within the professional workforce. It will be important, in ISACA's considered opinion, for the Action Plan to focus on both types of skills through apprenticeships, career and technical education, career and military transitioning opportunities, and workforce development efforts. Such a focus ensures that individuals entering workforces in which AI will play a central role embark on their careers armed with all the expertise, skills, and abilities needed to excel and advance.

As was previously mentioned, for all its ongoing impact AI remains a still-maturing technology. Because of this, ISACA believes that there is a concurrent need for policy solutions which can anticipate and support efforts to address the rapidly changing educational needs that will arise as a result of AI's maturation as a technology. There are already linkages between governmental agencies that focus, respectively, on education and workforce development; ISACA respectfully suggests that those government agencies could be more impactful if united, rather than merely linked. Our organization believes that this could create economies of scale when addressing education (including career and technical education) and workforce development needs, as well as provide a more nimble, unified construct within the Federal government to meet evolving educational and workforce needs.

Regulation and Governance, Including Technical and Safety Standards

As AI matures, the importance of the appropriate application and strengthening of existing laws and regulations, augmented by complementary new measures aimed at ensuring safety, security, and privacy while enhancing innovation capabilities, cannot be overstated. For this reason, ISACA suggests

the consideration of the creation of an AI Coordination Committee or Working Group (Committee/Group), and consisting of stakeholders from across the public, private, academic, and NGO sectors. The United States government should be informed of and adopt the best practices that would allow the harmonization and alignment of existing laws and regulations at the Federal level and become an even more impactful resource to unleash AI innovation consistent with national needs.

Regulators across industries should take a similar approach with technical and safety standards, aligning those as well. The Committee/Group could even go further, encompassing international technical and safety standards that align with US efforts as well as best practices within the space. Representatives from the NGO sector, such as ISACA, could be considered as non-official members of this Committee/Group, ensuring that the Committee/Group benefits from insights, feedback, or best practices from other national AI-focused leadership endeavors. ISACA believes that such an alignment could benefit from some of the concepts put forth in the “Streamlining Federal Cybersecurity Regulations Act” of the 118th Congress (S. 4630), particularly the emphasis on the creation of an interagency, multi-stakeholder committee. The regulatory reviews should carefully review the availability of best practices and frameworks from industry that have a proven track record of improving performance, governance and achieving risk management goals. ISACA’s CMMI 3.0 framework has been doing just that since its launch in 2023. The CMMI 3.0 framework is recognized by many US government agencies for its rigor and flexibility in meeting regulatory requirements, including by the Department of Defense and Food and Drug Administration

Given the complexity of this task, addressing this complicated task with innovative AI resources would enable the AI Action Plan to essentially use AI to address the challenges of AI. ISACA believes this is a course of action that is not only unique internationally, but could shorten the time needed to harmonize and align a complicated public policy landscape from years to months. Moreover, once created, ISACA believes these efforts could serve as a baseline for further efforts going forward, so that tomorrow's public policy efforts are built on the solid foundations created by the work of this Committee/Group. As an added benefit, the work of the Committee/Group would address the “patchwork quilt” currently being built across the United States as individual States author and enact AI legislation and regulations; doing so would ensure that, as AI matures, there is no need to replicate those piecemeal efforts. Additionally, if requirements for the presence of trained and credentialed professionals are contained within any final harmonized public policy(ies), ISACA believes this will ensure that the workforces charged with working within this new policy environment possess the appropriate knowledge and skills needed to ensure continued progress and prosperity.

Security, Privacy, and Impartiality Throughout the Lifecycle of AI System Development and Deployment

Just as the development of tomorrow’s AI workforce is critically important, so too are the systems those individuals will be tasked with working on or with. Therefore, it is critically important to use existing and widely accepted frameworks for IT and AI auditing, as well as those frameworks that address data and privacy security, so that there are appropriate levels of safeguards ‘baked in’ to the AI systems that are developed and deployed. Leveraging existing skills, training, knowledge, and frameworks from certification bodies such as ISACA and CMMI meet the intent of accounting for these

crucial considerations but do so in a way that leverages leading industry practices so as not to inhibit innovation and growth.

In the past, the Federal Communications Commission (FCC) created and deployed the U.S. Cyber Trust Mark, a voluntary cybersecurity labeling program for wireless consumer Internet of Things (IoT) products. While this may have been well-intentioned, it is nonetheless voluntary and, as such, does not have to be followed. The AI Action Plan, however, can benefit from the lessons learned regarding the Cyber Trust Mark.

ISACA recognizes that a primary goal of the AI Action plan is to foster innovation, not impede it; while our organization sees a more stringent certification approach similar to the “Energy Star” certification process as an “added value” for an AI system, it is understandable that others might disagree. To that end, ISACA would also suggest a compromise; that such a certification be reserved as a requirement for AI systems in areas such as critical infrastructure, national security, or sectors of similar significance. For AI systems of smaller significance, demonstrated adherence to or alignment with accredited voluntary industry standards or frameworks could prove sufficient. Beyond the certification process for AI systems, though, there will always remain the human factor; human oversight, human-driven auditing of AI systems, accomplished with skilled professionals using industry-recognized frameworks are core elements of ‘getting AI right’ that cannot be overlooked or understated.

ISACA believes that it will be of paramount importance for the characteristics of the workforce(s) needed to support these efforts to reflect the Administration's desire to see accountability and responsibility embedded across the AI life cycle. Critical to accomplishing this, ISACA believes, is the presence of trained and credentialed professionals contributing to the design of integrity controls during the development process, as well as the need for similarly trained and credentialed professionals auditing and validating the deployment, operation, and risk management of all AI systems.

Conclusion

ISACA is grateful for the opportunity to contribute the organization’s thoughts on the future of AI as both a technology and an economic driver. ISACA looks forward to assisting the Government in any capacity it can in the months and years to come.